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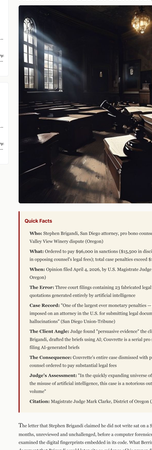

Quick Facts

Who: Stephen Brigandi, San Diego attorney, pro bono counsel for Joanne Cicverette in Valley View Winery dispute (Oregon)

What: Ordered to pay $96,000 in sanctions (83.5% goes to disciplinary penalties + $80,500 to opposing counsel's legal fees); total case penalties exceed $110,000

When: Sanctions filed April 4, 2026, by U.S. Magistrate Judge Mark Clarke (District of Oregon)

The Error: Three court filings containing 23 fabricated legal citations and 8 false quotations generated entirely by artificial intelligence

Case Record: "One of the largest ever monetary penalties — if not the largest ever — imposed on an attorney in the U.S. for submitting legal documents containing AI hallucinations" (San Diego Union-Tribune)

The Client Angle: Judge found "persuasive evidence" the client, Joanne Cicverette, not Brigandi, drafted the briefs using AI. Cicverette is a serial pro se litigant with history of filing AI-generated briefs

The Consequences: Cicverette's entire case dismissed with prejudice; Brigandi and co-counsel ordered to pay substantial legal fees

Judge's Assessment: "In the quickly expanding universe of cases involving sanctions for the misuse of artificial intelligence, this case is a notorious outlier in both degree and volume"

Citation: Magistrate Judge Mark Clarke, District of Oregon (April 4, 2026)

The letter that Stephen Brigandi claimed he did not write sat on a San Diego law firm's file for months, unreviewed and unchallenged, before a computer forensics expert named James Berriman examined the digital fingerprints embedded in the code. What Berriman discovered was stark: the document that Brigandi would later cite as evidence of his proper disclosure process to a court-ordered hearing was not created in 2026, when Brigandi claimed to have prepared it. It was created in 2023 — months after the ethics investigation had begun, months after the questions had been asked, and months after Brigandi had already submitted three court filings containing more than two dozen fabricated legal citations to an Oregon federal court.

On April 4, 2026, U.S. Magistrate Judge Mark Clarke issued an opinion that would become the most expensive attorney misconduct verdict in American legal history. Brigandi was ordered sanctions against Brigandi, with total monetary penalties to both the attorney and his co-counsel exceeding $110,000. The figure — believed to be the highest ever imposed for AI-generated hallucinations in legal filings — reflects not merely a finding of negligence but a judgment that Brigandi and his client had undertaken a sustained campaign of deception that went to the heart of the judicial system's integrity.

What makes the Brigandi case singular is not the technology that generated the false citations. That technology — the large language model underneath ChatGPT, Google's Gemini, and countless other AI tools — has been generating hallucinated citations for months. What makes the Brigandi case singular is the scale of the falsification, the sophistication of the concealment, and the willingness of a federal judge to impose consequences that finally give shape and substance to the consequences attorneys face when they allow AI to do their thinking for them.

The Winery War and the Sibling Dispute

Valley View Winery sits in southwestern Oregon, a family asset currently at the center of litigation that would ordinarily seem significant only to the Winesocky family. The lawsuit, filed in January 2025, is a classic intrafamily business dispute: Joanne Cicverette, the client sibling, and her two younger brothers, Mark and Michael Winesocky, seeking control of the vineyard as their ailing mother's death loomed. It was the kind of case that family law attorneys encounter every day: emotionally fraught, financially consequential, and sealed in the particular bitterness that arises when blood relations become business adversaries.

Brigandi entered the picture in early 2024, nearly three years after the lawsuit had been filed. He joined the litigation as counsel for Cicverette, though given his location in San Diego and the case's jurisdiction in Oregon federal court, he required special permission to appear pro hac vice — a privilege that came with a local counsel requirement. An Oregon attorney named Tim Murphy agreed to serve in that capacity, vouching for Brigandi and assuming the obligation to monitor the case.

The two lawyers had no way of knowing, at the time they entered the representation, that they were about to become defendants in what would be one of the most expensive attorney discipline cases in American legal history.

The Motions That Broke the Rules

Between January 2025 and March 2025, Brigandi filed three separate motions in support of Cicverette's claim. In total, the three filings contained citations to 23 nonexistent cases and eight fabricated quotations falsely attributed to legitimate legal authorities. The citations were not typographical errors — incorrect case numbers, transposed dates, or other recognizable mistakes that might arise from careless cite-checking. They were wholesale inventions: cases with plausible names, realistic courts, convincing citation formats, and quotations that sounded as if they came from actual judicial opinions.

All of this material was generated by artificial intelligence.

Brigandi later acknowledged that "some of the drafting involved the use of GAI" — generative artificial intelligence — but insisted that he had not drafted the documents himself. When asked directly whether he bore responsibility for the fabrications, he responded with the now-familiar refrain of lawyers caught in AI hallucination scandals: "I did not draft the documents."

The question of who actually drafted the documents became the centerpiece of the magistrate judge's opinion. On its surface, it seemed like a straightforward inquiry: who was responsible for submitting briefs containing 23 fabricated legal citations to a federal court? But the answer, Judge Clarke concluded, was more complicated than Brigandi's initial suggested.

The Smoking Gun: Digital Forensics and the Backdated Letter

The pivotal moment in the case came when Judge Clarke ordered computer forensics analysis of the documents Brigandi had produced in response to the court's discovery requests. The expert hired by the opposing counsel, James Berriman, examined the metadata — the embedded digital record that document when files are created, accessed, and modified. His findings were unequivocal: the letters and documents that Brigandi claimed demonstrated his proper disclosure practices were not contemporary with the events they purported to describe. They were fabrications, created after the litigation had begun to reveal the false citations.

Judge Clarke noted the obvious implication: Brigandi had spent months watching the case deteriorate, watching the opposing counsel identify the fabrications, and watching the system begin to demand accountability. Then, and only then, he manufactured the documentary evidence he hoped would protect him.

Who Actually Drafted the Briefs? The Couvrette Question

But Judge Clarke's opinion raises an even more damaging finding: the briefs containing the AI-generated citations may not have been drafted by Brigandi at all. They may have been drafted by Cicverette — his client.

The evidence for this conclusion came from Cicverette's own testimony. According to filings submitted by her brothers' attorneys, Cicverette is what the legal system calls a "serial pro se litigant" — someone with a history of representing herself in court and proudly boasting of her litigation experience. More significantly, the brothers' attorneys uncovered evidence that Cicverette had herself filed briefs in Oregon state court, in cases related to the same subject matter, that contained fabricated citations in a form and style remarkably similar to the federal briefs at issue.

Judge Clarke noted this pattern: "Only a few months ago Cicverette filed in the Oregon state court of appeals two legal briefs containing fake cases that are very similar in form and appearance to the three sanctionable briefs Plaintiffs filed in this case."

The brothers' attorneys asked the judge to sanction Cicverette personally, not just her attorneys. Clarke declined to do so — but not because he found her innocent. He declined because Cicverette, who given multiple opportunities to explain herself in court and proudly boasting of her litigation experience, then significantly, the brothers' attorneys uncovered evidence that Cicverette had herself filed briefs in Oregon state court, in cases related to the same subject matter, that contained fabricated citations in a form and style remarkably similar to the federal briefs at issue.

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